

CORPORATE SECURITIES TRADING POLICY

PT ANTAM (PERSERO) TBK



COMPANY SECURITIES TRADING POLICY

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Number : 38.K/09/DAT/2008

Date : 18 February 2008

1. GENERAL PROVISIONS

In this Policy referred to as:

- a. Directors are Company Directors.
- b. Special Relationship is an individual or body considered as having a special relationship with the Company if such individual:
 - i. is an employee of the Company;
 - ii. Has a relationship or submits a proposal in order to have a business relationship or professional activity with or for the interest of the Company or the Company's subsidiaries.
- c. Material Information or Fact is information or an important and relevant fact regarding an event, circumstances, or a fact which may influence Securities price in the Stock Exchange.
- d. Material Non-public Information or Fact is an information not yet revealed by the Company to the public through corporate communication distribution lane or authorized official.
- e. Material Public Information or Fact is a Company's information which has been announced to the public through capital market authority.
- f. Policy of this Company Securities Trading Policy will be renewed from time to time.
- g. Quiet Period is a period which begins from the time when the financial calendar quarterly performance report is available and ends when financial report is revealed to the public.
- h. Company Insiders include:
 - i. commissioners, directors, or employees of the Company;
 - ii. Major shareholders of the Company;
 - iii. Individuals who, due to their position or profession or to their business relation with the Company, are allowed to gain Insider Information; or
 - iv. Any parties which, within the past 6 (six) months, no longer become any Party referred to in item (a), (b), or (c) above.

"Position" in the description of item (iii) refers to an office in government organizations, institutes, or bodies.

"Business relation" in the description of item (iii) refers to work relation or partnership in business activity, including customer relation, supplier, contractor, client, and creditor.

"Insider Information" in the description of item (iii) refers to Material Information or Fact possessed by Insider which is not yet available for the public. Example of item (d): Mr. A resigns from his position as Director on 1 January. However, Mr. A is still considered as an Insider until 30 June of the relevant year.

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- i. Company is the Limited Liability Company of Perusahaan Perseroan (Persero) PT Aneka Tambang Tbk or PT Antam (Persero) Tbk in short.
- j. Company Securities or Stocks includes debt acknowledgment, commercial papers, stocks, bonds, debentures, participation units issued by the Company.
- k. Tipping is an activity of announcing/revealing Material Information or Fact not yet published to any party.
- l. Capital Market Law is Indonesia Law Number 8 Year 1995 concerning Capital Market.

2. STATEMENT AND PURPOSE OF POLICY

In order to ensure compliance with the Capital Market Law and Capital Market authority regulations in both Indonesia and Australia, the Company therefore establishes a Company Securities Trading Policy.

This intention of this policy is to regulate trading of Company Securities at the time when an individual is in possession of an information which is material in characteristic and has not yet been published, tipping or disclosure of such information to outside party, and to prevent inappropriate trading and disclosure or tipping.

Every trade of Company Securities conducted by Company Insider in possession of non-public information and material fact is considered as a violation against law. Also falling into the category of violation against law is when a Company Insider provides non-public material information concerning the company to another person which allows such person to conduct trading of the Company's Securities based on the information.

This policy is also intended to prevent inappropriate behavior as a part of the company's efforts in building and maintaining high integrity and ethical behavior which serve as upheld values in establishing the Company's reputation.

3. SCOPE OF POLICY

- a. This policy applies for all Company Insiders as well as the consultants, brokers, and other people interacting with the company or the company's units or subsidiaries, including sales agents and partners in joint ventures who gain or have access to Material Non-public Information or Fact concerning the company.

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- b. The parties included in the scope of this Policy are also responsible for ensuring the compliance of their families, including all their close relatives with this Policy.
- c. This Policy is applied to all transactions of Company Securities, including regular stocks, stock buying options, and other types of securities issued by the company.

4. COMPANY SECURITIES TRADING COMPLIANCE SUPERVISORY OFFICER

The Company Securities Trading Compliance Supervisory Officer is the Senior Vice President Corporate Secretary, and in the case when the Corporate Secretary Officer is not present or unavailable, the Assistant Senior Manager Investor Relations shall then be authorized to confirm the compliance.

Should Company Insiders be unsure whether the information they have are material and/or non-public, they are then required to consult the Corporate Secretary division in order to obtain advice before conducting a trade.

In its duty to ensure compliance with this Policy, the Corporate Secretary division must:

- a. Administer and interpret this Policy and monitor as well as encourage compliance with all provisions and procedures in this Policy;
- b. Respond to all questions related to this Policy and the procedures therein.
- c. Decide and announce the special period of trading blackout in which there would be no Company Insider at all who may conduct trading of the company's stocks;
- d. Socialize this Policy and other relevant materials to all employees and Company Insiders;
- e. Administer and encourage compliance with the laws and regulations applicable in the Indonesian and Australian stock exchanges where the Company registers its stocks;
- f. Revise this Policy when necessary in order to adapt to changes in laws and regulations concerning Company Securities trading by Company Insider (insider trading);
- g. Administer reporting process of Company Securities trading by Company Insider;
- h. Store company's documents, both original and copies, required by this Policy and the procedures therein as well as all reports concerning insider trading required by the Indonesian Capital Market Supervisory Agency (BAPEPAM) or the Australian capital market authority agency.

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5. PROHIBITED ACTIVITIES

- a. Every Company Insider is prohibited to trade Company Securities when he/she is in possession of a Material Non-public Information or Fact concerning the company (unless those allowed according to the provisions below). Despite whether or not there is an acceptable reason to sell or buy, when Company Insiders have Material Non-public Information or Fact, the Company Securities trading prohibition remains to apply.
- b. Every Company Insider is prohibited to trade Company Securities outside of the “trading windows” explained in article 6 below and Company Insider is not allowed to trade Company Securities during the trading blackout period set by Company Securities Trading Compliance Supervisory Officer.
- c. Every Company Insider is prohibited to disclose Material Non-public Information or Fact concerning the company to any outside party, including family members, analysts, individual investors, and members of investment communities as well as the mass media except required as a part of a routine task of employees, officers, members of Board of Directors or Board of Commissioners and members of relevant Committee or for the sake of a legal business purpose or after having been permitted by the Company Securities Trading Compliance Supervisory Officer.
In every such case where such information is disclosed to outside party, the company shall take necessary measures in order to maintain the confidentiality of the relevant information including by asking the agreement of the outside party to comply with the provisions in this Policy as well as sign an agreement to guard information confidentiality (confidentiality agreement). All questions from outside party concerning Material Non-public Information or Fact on the company must be directly forwarded to the Company Securities Trading Compliance Supervisory Officer.
Information concerning parties which can be categorized into Exceptions for the sake of legal business purpose is specified in Company Information Disclosure Policies. Exceptions for the sake of legal business purpose do not apply to selective disclosure to analysts, investors, media and other capital market professionals.
- d. Every Company Insider in possession of a Material Non-public Information or Fact is not allowed to provide recommendation for Company Securities trading.
- e. Every Company Insider is prohibited to conduct option or position trading in relation to the future (future price) of Company Securities such as put, call, or short sale.
- f. Every Company Insider is prohibited to give or cause anyone to transfer Company Securities during a period where they are not allowed to conduct trading.

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- g. Other than Investor Relations Officer, all Company Insiders are not allowed to participate in “chat room” on the internet or message boards which are related to company’s investment and stocks. They are only allowed to observe passively.
- h. Every Company Insider in possession of Insider Information is prohibited to conduct purchase or sale of Company Securities;
The prohibition for Company Insiders to conduct purchase or sale over Company Securities is based on a consideration that the position of being an insider requires them to put the Company’s interest first, or the stockholders’ interest as a whole, including not using Insider Information for their own interest or other Party’s interest.
- i. Every Company Insider in possession of Insider Information is prohibited to conduct purchase or sale of securities of other companies which conduct transaction with the Company.
- j. Every Company Insider is prohibited to influence other Party to conduct purchase or sale of the intended Company Securities; or extend Insider Information to any Party who the Company suspects will use such the information for conducting purchase or sale of Company Securities.
- k. Every Company Insider is prohibited to influence other Party to conduct purchase or sale of Company Securities even though the insider does not provide Insider Information to other Party, since this may encourage other Party to conduct purchase or sale Company Securities based on Insider Information.
- l. Company Insiders are prohibited to provide Insider Information to other Party who the Company suspects will use such information to conduct purchase or sale of Company Securities. Therefore, Company Insiders have an obligation to be careful in spreading information in order for the Party receiving the information not to misuse the information for conducting purchase or sale of Company Securities.

6. TRADING WINDOW AND BLACKOUT PERIODS

- a. Trading Window for Company Insiders
Company Insiders may conduct Company Securities trading after the company has disseminated information regarding quarterly, annual or end of year financial statements and this period shall end on the day of trading closing one day before a quarter or a semester ends, as long as they are not in possession of Material Non-public Information or Fact concerning the company at that time or are not bound to a special trade blackout.

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- b. Trading during Trading Window is not carried out when a person possesses a Material Non-public Information or Fact.

Every Company Insider in possession of Material Non-public Information or Fact concerning the company is not allowed to conduct Company Securities trading regardless of being in a trading window period. A person who possesses such information may only conduct trading during trading window after the information has been announced to the public.

- c. No trading during Blackout Period

Company Insiders are not allowed to trade Company Securities outside trading window period or certain blackout period set by the Company Securities Trading Compliance Supervisory Officer. In addition to that, Company Insiders are not allowed to disclose to any outside party that a certain blackout period has been determined.

Blackout period commences on 30 March, 29 June, 29 September, and 30 December every year and ends when the company disseminates information which previously is non-public information. If the above commencing dates of Blackout Period fall on Sunday (weekend), the Blackout Period shall then commence at the closing time of the last trading day before the weekend.

In order to ensure fair and symmetric distribution of information to all parties, the company always disseminates the information, which previously is non-public information, when the market has closed.

Other than the periods stated above, the company also applies Blackout Period in certain situations where there occur changes which result in Material Information or Facts.

7. PROCEDURES OF TRADING REPORTING

The following procedures must be followed by Company Insiders conducting Company Securities trading:

- a. Due to the fact that there are certain times when the company considers it necessary to ask Company Insiders not to conduct trading because of a certain reason although such trading is carried out outside a routine Blackout Period as stated in Article 6, every trading of Company Securities by Company Insiders must be reported in advance to the Company Securities Trading Compliance Supervisory Officer.
- b. There shall be a notification complete with the reason of why the trading is carried out and a statement that the concerned party is not in the condition if having in possession any Material Non-public Information or Fact.

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- c. The Company Securities Perusahaan Trading Compliance Supervisory Officer shall confirm that all required forms have been completed.
- d. Company Insiders are required to report/confirm to the Company Securities Trading Compliance Supervisory Officer after a Company Securities trading transaction has been done.
- e. These procedures do not apply for the purchase of Company Securities which has been set in Employee Stock Purchase Plan or for exercise of option over company's stock which has been set in Corporate Equity Incentive Plan.

8. IMPLEMENTATION OF COMPANY SECURITIES TRADING RESTRICTION REGULATIONS

- a. Prohibitions and restrictions of trading stipulated in this Policy may not be applicable due to the existence of prohibitions and restrictions stipulated by higher law provisions and regulations.
- b. Every Company Insider who feels uncertain about other prohibitions or restrictions must ask the Company Securities Trading Compliance Supervisory Officer regarding the matter.

9. SANCTIONS OVER VIOLATIONS

The Company does not tolerate any practices which do not obey to this Policy. The Company shall conduct further process on violations of this Policy according to the company regulations and applicable laws and regulations. Sanctions which may be imposed on to such violations include:

a. Legal Sanction

According to Article 104 of the Indonesia Capital Market Law, a person who illegally takes advantage of company information and a person who illegally takes advantage of inside information obtained from Company Insider may be imposed by an imprisonment sanction for a maximum time of 10 (ten) years and a fine with a maximum amount of Rp. 15.000.000.000,00 (fifteen billion rupiahs). The imprisonment and fine penalties also apply to any Party which, whether directly or indirectly, illegally influences another Party to violate the articles related to utilization of information.

b. Disciplinary Sanction

Violation against this Policy or the Capital Market Law regarding insider trading and tipping by Company employee or officer shall be imposed with a disciplinary

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sanction up to the level of termination from employment as the Company's employee or officer.

For the sake of its interest and based on information available, the Company reserves the right to determine whether or not this Policy has been violated. In taking disciplinary action, the Company shall not have to wait for the conclusion of investigation by law enforcers or other authorized parties in order to determine whether or not a violation against this Policy has occurred.

Stipulated in : Jakarta

On the date of : 18 February 2008

**BOARD OF DIRECTORS OF PT ANTAM
(PERSERO) Tbk**

PRESIDENT DIRECTOR

signed

Ir. D. ADITYA SUMANEGARA
